

25STCV07294 25STCV07294

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Department: 506
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Case Number: 25STCV07294 Hearing Date: July 23, 2026 Dept: 506

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

FOR THE
COUNTY OF LOS ANGELES - CENTRAL DISTRICT

MARIA MARTINEZ,

Plaintiff,

vs.

AMERICAN HONDA MOTOR CO., INC. ET AL.

Defendant.

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CASE NO.: 25STCV07294

[TENTATIVE] ORDER

GRANTING DEFENDANT'S MOTION TO DEEM
REQUESTS FOR ADMISSION ADMITTED AS TO PLAINTIFF MARIA MARTINEZ

Dept. 506

8:30 a.m.

JULY 23, 2026

On

March 13, 2025, Plaintiff Maria Martinez filed this Song Beverly action against
Defendant American Honda Motor Co., Inc.

Plaintiff's complaint alleges (1) violation of subdivision (d) of Civil
Code section 1793.2; (2) violation of subdivision (b) of Civil Code section
1793.2; (3) violation of subdivision (a)(3) of Civil Code section 1793.2; (4)
breach of implied warranty of merchantability (Civil Code §§1791.1, 1794 and
1795.5); (5) fraudulent concealment.

On

June 30, 2026, Defendant filed the instant motion to deem requests for
admission ("RFAs") admitted against
Plaintiff Maria Martinez. On July 13,
2026, Plaintiff filed an opposition to the motion to deem RFAs admitted. As of July 20, 2026, no reply has been filed.

I. Legal Standard

A response to requests for admission is due within 30 days after service. (Code Civ. Proc., §2033.250, subd. (a).) “If a party to whom requests for admission are directed fails to serve a timely response, the following rules apply: (a) the party to whom the requests for admission are directed waives any objection to the requests. . . (b) [t]he requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted. . .” (Code Civ. Proc., § 2033.280, subd. (b).) “The court shall make this order, unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220. . .” (Code Civ. Proc., § 2033.280, subd. (c).)

“It is mandatory that the court impose a monetary sanction . . . on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion.” (Code Civ. Proc., § 2033.280, subd. (c).)

II. Defendant’s Motions to Deem RFAs Admitted as to Plaintiff Maria Martinez is _____

Defendant

served Requests for Admission (Set One) on Plaintiff on January 12, 2026. (Motion, Ovsepyan Dec., ¶3, Ex. A.) Plaintiff served responses to the RFAs on February 17, 2026 consisting entirely of objections and without verification forms. (Id. at ¶4, Ex. B.)

Defendant

argues the objections are meritless. However, Defendant is only entitled to an order deeming requests for admission if a party “fails to serve a timely response.” (Code of Civ. Proc., §2033.280, subd. (a).) An order deeming RFAs admitted is unavailable for unsatisfactory responses. Defendant’s remedy for unsatisfactory responses is to move to compel further pursuant to Code of Civil Procedure section 2033.290.

Defendant

argues Plaintiff’s responses were unverified, citing to Appleton v. Superior Court (1988) 206 Cal.App.3d 632, 636 for the proposition that unverified

responses are tantamount to no responses at all. However, “the party to whom the requests for admission are directed shall sign the response under oath, unless the response contains only objections.”

(Code of Civ. Proc., §2033.240, subd. (a).) Plaintiff’s February 17, 2026 responses consisted only of objections and no verification was required.

However,

Plaintiff’s responses were due 30 days plus 2 court days for service after service of the RFAs. The RFAs were served on January 12, 2026 and the responses were due by February 13, 2026. The responses were not served until February 17, 2026 and consisted entirely of objections, which were waived due to untimeliness.

Plaintiff

served “code-compliant” responses with verifications on July 13, 2026, after this motion was filed. (Peterson Dec., ¶13.) Plaintiff did not provide a copy of the responses to the Court. Plaintiff described her responses as “substantive responses and, where appropriate, limited objections that identify the particular grounds therefor.” (Motion, 4:18-19.)

Plaintiff

waived all objections by failing to provide timely responses. Plaintiff may move by separate noticed motion for relief from that waiver. Plaintiff did not do so. In opposition, Plaintiff argues that the untimely responses were due to the error of counsel but there is no request for relief from waiver, nor would inclusion of such a request in the opposition constitute a “motion” contemplated by Code of Civil Procedure section 2033.280, subdivision (a).

Plaintiff’s responses are also not substantially compliant with Code of Civil Procedure section 2033.220, which they must be to avoid having the RFAs admitted against her under Code of Civil Procedure section 2033.280, subdivision (c). Section 2033.220 does not allow for assertion of objections. Plaintiff admits that she included objections in the responses served on July 13, 2026.

Defendant’s

motion to deem the RFAs admitted against Plaintiff is granted. Plaintiff fails to establish that she served

responses that substantially complied with Code of Civil Procedure section 2033.220 before the hearing date.

Defendant

is also entitled to monetary sanctions.

Defendant requests sanctions in the amount of \$980 based on 4 hours of motion work @ \$230/hr plus a \$60 filing fee against Plaintiff and Plaintiff's counsel, Strategic Legal Practices, APC.

Defendant's request is granted.

Defendant

American Honda Motor Co., Inc.'s Motion to Deem Requests for Admission Admitted

as to Plaintiff Maria Martinez and Request for Sanctions is GRANTED. The RFAs (set one) are deemed admitted as to Plaintiff. Plaintiff and Plaintiff's

counsel are ordered to pay sanctions in the amount of \$980 within 20 days.

Defendant's Motion to Deem Requests for Admission

Admitted against Plaintiff Maria Martinez is DENIED.

Moving

party to give notice.

Parties

who intend to submit on this tentative must send an email to the Court at indicating intention to submit. If all parties in the case submit on the tentative ruling, no appearances before the Court are required unless a companion hearing (for example, a Case Management Conference) is also on calendar.

Dated this 23rd day of July 2026

Hon. Thomas D.

Long

Judge of the Superior

Court